

3.

CASE #	CASE NAME	HEARING NAME
CVRI2401463	QUILLMAN VS BEATTY	MOTION TO SET ASIDE

Tentative Ruling:

The Court denies the Motion to Set Aside without prejudice as there is no evidence that Plaintiff's counsel was appropriately served with the Motion.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2304863	CABANAS ALMAZAN VS AMERICAN HONDA MOTOR	MOTION TO STRIKE OR IN THE ALTERNATIVE, TAX COSTS BY AMERICAN HONDA MOTOR

Tentative Ruling:

The Court GRANTS, in part, Defendant's Motion to Strike or Tax Costs for the following items: Item 1 (Filing Fees): \$60.00 (anticipated attorney fees motion filing); Item 8(b) (Expert Fees): \$850.00 (cancellation and late notice charges); Item 13 (Other Costs – Travel): \$4,174.92 (lodging only); and Item 13 (Other Costs - Court Appearance Professionals): \$75.00, for a total of \$5,159.92. The Court DENIES as to all other challenged costs. Plaintiff is entitled to recover costs in the reduced amount of \$45,193.22 (\$50,353.14 – \$5,159.92).

Defendant challenges a total of \$43,791.04 in costs. Each category is addressed as follows:

a. Filing Fees (Item 1)

Plaintiff claims \$570.00 in filing and motion fees, including \$450.00 for the Complaint filing, \$60.00 for an Ex Parte to Continue Trial, and \$60.00 for an anticipated Motion for Attorney Fees. Defendant challenges the latter two amounts totaling \$120.00, arguing that these items lack documentation and that anticipated costs are not recoverable.

Filing fees are recoverable under CCP § 1033.5(a)(1), which provides that "[f]iling, motion, and jury fees" are allowable as costs. (CCP § 1033.5(a)(1).)

Ex Parte to Continue Trial (\$60.00). Plaintiff's opposition demonstrates the Ex Parte to Continue Trial was reasonably necessary because it resulted from Defendant's repeated cancellations of vehicle inspections that prevented expert depositions from going forward timely before the January 2, 2026 trial date. (Devabose Decl. ¶ 5, Ex. B.) Defendant's challenge is further undermined by the fact that Defendant was supposed

to draft a joint stipulation to continue trial prior to the ex parte but never did. (*Id.*) The Court finds that this filing fee was reasonably necessary to the conduct of the litigation. The expense was expressly allowable by statute, and Plaintiff showed the circumstances necessitating the filing. Thus, the Court DENIES the motion with respect to the \$60.00 Ex Parte filing fee.

Anticipated Motion for Attorney Fees (\$60.00). Anticipated or future costs that have not yet been incurred are not recoverable. As of the May 26, 2026 filing date of the Memorandum of Costs, Plaintiff had not yet incurred the filing fee for the Motion for Attorney's Fees. A memorandum of costs must be based on costs actually incurred, not those anticipated to be incurred. Thus, the Court GRANTS the motion with respect to the \$60.00 anticipated filing fee.

b. Service of Process (Item 5)

Plaintiff claims \$364.17 for service of process on COR Riverside Honda and \$289.00 for service of process on Spreen Honda Loma Linda, totaling \$653.17. Defendant challenges these costs based on lack of documentation and unclear necessity.

Service of process fees are recoverable under CCP § 1033.5(a)(4), which provides that "[s]ervice of process by a public officer, registered process server, or other means" is allowable as a cost. (CCP § 1033.5(a)(4).)

In opposition, Plaintiff submitted invoices for these services. (Devabose Decl. ¶ 6, Ex. C.) Plaintiff also explained the necessity: Defendant regularly refuses to stipulate to the authenticity of repair orders, so Plaintiff had to ensure Custodians of Records were ready to testify at trial or at least have declarations authenticating the repair orders to lay requisite foundation for authenticity and admissibility of basic repair orders at trial. (See Pl.'s Opp. 8:2–12.) The expense was expressly allowable by statute, and Plaintiff showed the circumstances necessitating the service. (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131–32.) Having provided supporting invoices and a reasonable explanation of necessity, Plaintiff has met her burden. Thus, the Court DENIES the motion with respect to these costs.

c. Expert Fees (Item 8(b))

Plaintiff claims \$1,110.00 for Thomas Lepper, dated November 1, 2024. Defendant initially challenged these costs based on insufficient documentation. In reply, Defendant points to specific line items: \$350.00 for "Attorney Consulting – VI cancelled less than 24 hours" and \$500.00 for "Late Cancellation Fee." (Def.'s Reply 4:21–25.) Defendant argues that while expert witness fees may be recoverable, cancellation fees and late notice charges are not.

CCP § 1033.5(b)(1) provides that expert witness fees are not allowable as costs except when expressly authorized by law. In *Jensen*, the Court of Appeal expressly

holds that expert witness fees are recoverable under the Song-Beverly Act even though CCP § 1033.5 states they are not recoverable unless ordered by court. (*Jensen, supra*, 35 Cal.App.4th at 138.) The legislative history indicates that the Legislature intended to permit the recovery of expenses such as expert witness fees by prevailing buyers under the Act. (*Id.*)

Plaintiff submitted Thomas Lepper's invoices in opposition. (Devabose Decl. ¶ 7, Ex. D.) Expert fees were for services rendered as a result of Defendant's litigation of this case, including initial review of the repair history and analysis prior to a vehicle inspection that Defendant cancelled.

However, Defendant's reply arguments have merit. While expert fees for substantive work—reviewing documents, analyzing repair history, preparing for testimony—are recoverable under *Jensen*, cancellation fees and late notice charges do not fall within that category. (*Jensen, supra*, 35 Cal.App.4th at 138.) These are penalty charges imposed by the expert for the cancellation itself, not compensation for work performed in connection with the commencement and prosecution of the action. While Defendant may have caused the cancellation, Plaintiff has not demonstrated that such penalty charges are “reasonably incurred” costs recoverable under Civ. Code § 1794(d). The remaining expert fees (\$260.00) represent actual work performed by the expert and are recoverable. Thus, the Court GRANTS the motion in part as to this item and tax \$850.00 in cancellation and late notice charges.

d. Models, Blowups, and Photocopies (Item 11)

Plaintiff claims \$2,831.16 for “B&W Printing/Tabs/Binders/Messenger.” Defendant challenges this amount based on lack of itemization or receipts.

CCP § 1033.5(a)(13) provides that “[m]odels and blowups of exhibits and photocopies of exhibits may be allowed if they were reasonably helpful to aid the trier of fact.”

In opposition, Plaintiff provided the invoice for these costs. (Devabose Decl. ¶ 8, Ex. E.) Plaintiff explained these costs were incurred to create binders, exhibits, and boxes for use at trial. (*Id.*) While the parties displayed trial exhibits digitally, the witnesses, Judge, Court Clerk and both counsel still required physical binders and copies of exhibits in case there were technical issues with computer displays or counsel needed to display something using the ELMO. (Pl.'s Opp. 10:22–28.) The Court Clerk had to submit a binder to the jury of all admitted exhibits for the jury to review during deliberation. (*Id.* at 11:1–2.) To the extent messenger costs are included, courts have upheld messenger fees when related to trial preparation, filing documents with the court, and transporting exhibits to and from the courtroom. (*Ladas, supra*, 19 Cal.App.4th at 776.) Having provided supporting documentation and a reasonable explanation of necessity, Plaintiff has met her burden. (*Nelson, supra*, 72 Cal.App.4th at 131–32.) Thus, the Court DENIES the motion with respect to these costs.

e. Court Reporter Fees (Item 12)

Plaintiff claims a total of \$22,649.26 for fees from Steno Agency Inc. for trial dates in January and February 2026. Defendant challenges these costs based on lack of invoices or additional description supporting reasonableness.

CCP § 1033.5(a)(11) provides that “[c]ourt reporter fees as established by statute” are allowable as costs.

In opposition, Plaintiff submitted invoices. (Devabose Decl. ¶ 9, Ex. F.) Plaintiff explained that Riverside County has long since stopped providing official court reporters, so parties must arrange for their own court reporters if they wish for proceedings to be transcribed. (Pl.’s Opp. 11:24–12:8.) Under Gov. Code § 68086(d)(2), “if an official court reporter is not available, a party may arrange for . . . a certified shorthand reporter to serve as an official pro tempore reporter,” and “[t]he fees . . . **shall be recoverable as taxable costs by the prevailing party.**” (Gov. Code § 68086(d)(2) [emphasis added].) The expense was expressly allowable by statute, and Plaintiff showed the circumstances necessitating the expense. (*Nelson, supra*, 72 Cal.App.4th at 131–32.) Having provided supporting invoices and explained the necessity and statutory basis for these costs, Plaintiff has met her burden. Thus, the Court DENIES the motion with respect to these costs.

f. Other Costs (Item 13)

Plaintiff claims \$16,427.45 in other costs. Defendant challenges all of these costs, arguing that they were not reasonably necessary, reasonable in amount, or properly documented.

Attorney Services and Messenger (\$424.38). Plaintiff claims \$424.38 in attorney services and messenger fees. Although courier or messenger fees are not specifically enumerated in CCP § 1033.5(a), they are not prohibited in subdivision (b), and may be recoverable in a trial court’s discretion if reasonably necessary to the conduct of the litigation under subdivision (c)(4). In *Ladas*, a messenger fees award was upheld because sufficient evidence indicated they “were related to trial preparation, and were incurred for such matters as filing documents with the court, complying with appellants’ document demands, and transporting exhibits to and from the courtroom.” (*Ladas, supra*, 19 Cal.App.4th at 776.)

Plaintiff incurred attorney service and messenger fees for filing court documents such as the Complaint, Case Management Statements, and various trial documents. (Devabose Decl. ¶¶ 4, 10, Exs. A & G.) Under the Song-Beverly Act, these costs are further justified because each of the court filings occurred during the “prosecution of such action.” (Civ. Code § 1794(d).) Plaintiff argues that it was reasonable for her counsel to use lower-cost attorney services to file documents rather than sending an attorney to personally file documents while incurring a lodestar hourly rate for travel. (Pl.’s Opp. 12:23–28.) Thus, the Court DENIES the motion with respect to this cost.

Travel (\$8,298.32). Plaintiff claims \$8,298.32 in travel expenses, including lodging, mileage, meals, and parking. While CCP § 1033.5(a)(3)(C) permits reimbursement of “travel expenses to attend depositions,” Plaintiff does not identify any segregated portion of the claimed travel costs as specifically incurred for deposition attendance. Although *Jensen* recognizes that Song-Beverly permits recovery of both “costs” and additional “expenses” (*Jensen, supra*, 35 Cal.App.4th at 137), the Court must still determine whether the claimed expenses were “reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.” (CCP § 1033.5(c)(2); *see also Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682–83.)

In opposition, Plaintiff argues that her counsel is primarily based in Los Angeles and necessarily had to find lodging near the Court for trial and rely on local restaurants for meals throughout trial. (Pl.’s Opp. 13:15–23.) Plaintiff contends that “[t]hese nominal travel expenses were reasonably incurred in the ‘commencement and prosecution’ of this action.” (*Id.* at 13:19–20.) While Plaintiff is entitled to select counsel of her choice, the statutory question remains whether overnight lodging was reasonably necessary given the approximate one-hour distance between Los Angeles and Riverside. The Court finds that daily commuting was feasible under these circumstances. The lodging expenses totaling \$4,174.92 were more convenient than reasonably necessary to the conduct of the litigation. The remaining expenses—mileage, meals during trial, and parking—totaling \$4,123.40, represent reasonable incidents of counsel’s daily travel to and participation in trial. Thus, the Court GRANTS the motion in part as to travel costs and tax \$4,174.92 in lodging expenses, allowing the remaining \$4,123.40.

Interpreter Services (\$5,594.75). Plaintiff seeks \$5,594.75 for interpreter services throughout trial. Plaintiff required the interpreter both for her own testimony and to understand the proceedings during trial. Plaintiff provided supporting invoices and an itemized internal spreadsheet documenting each interpreter expense. (Devabose Decl. ¶¶ 4, 10, Exs. A & G.) Plaintiff explains that she best understood and spoke Spanish. Defendant challenges these costs based solely on lack of documentation. However, Plaintiff has provided the documentation Defendant claims is missing. Having provided supporting documentation and explained the necessity, Plaintiff has met her burden. (*Nelson, supra*, 72 Cal.App.4th at 131–32.) Thus, the Court DENIES the motion with respect to this cost.

Court Appearance Professionals (\$75.00). Plaintiff seeks \$75.00 for a professional appearance attorney service to appear at a single Order to Show Cause hearing on Plaintiff’s counsel’s behalf. Plaintiff provided supporting documentation, including an itemized spreadsheet and receipt. (Devabose Decl. ¶¶ 4, 10, Exs. A & G.) Plaintiff argues that the appearance was reasonably necessary and that using a local appearance attorney at a fixed third-party rate of \$75.00 was more economical than having her Los Angeles-based counsel appear personally. While Song-Beverly permits recovery of “costs and expenses” reasonably incurred in the prosecution of the action, Plaintiff has not demonstrated why counsel’s personal appearance at this hearing was infeasible or why a telephonic or remote appearance was unavailable. Allowable costs

must be “reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.” (CCP § 1033.5(c)(2).) Here, Plaintiff has made no showing that this expense was reasonably necessary rather than merely convenient. Thus, the Court GRANTS the motion with respect to this cost.

Other - Touch Device Rental (\$2,035.00). This charge is for the device the Court requested from the court reporter so it could view the “realtime” transcription from day 2 of trial all the way through Verdict on day 11 of trial. (Pl.’s Opp. 14:17–20.) Plaintiff seeks only the cost of renting the device the Court requested from the court reporter. (*Id.* at 14:26–28.) Having provided supporting documentation (Devabose Decl. ¶¶ 4, 10, Exs. A & G), these costs are recoverable under the expanded recovery scheme under Civ. Code § 1794(d), and are reasonably necessary. (*Nelson, supra*, 72 Cal.App.4th at 131–32.) Thus, the Court DENIES the motion with respect to this cost.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2200196	SPANN VS BANKERS INSURANCE COMPANY	RENEWED MOTION FOR DISCOVERY PURSUANT TO EVIDENCE CODE § 1043 ET SEQ. (PITCHESS)

Tentative Ruling:

The Court GRANTS in part the *Pitchess* motion as to Officer Arden’s taser-related complaint, review, certification, recertification, and training deficiency and corrective records. The Court DENIES the motion as to the remaining records for failure to establish the existence of new or different facts to support a renewed motion.

Here, the Court denied the prior *Pitchess* motion, which Plaintiffs now renew to seek relief again. Accordingly, Plaintiffs must demonstrate new or different facts, circumstances or law. (C.C.P. § 1008(b).)

Plaintiffs argue that officer testimony and evidence presented at Herrera’s criminal trial, which was not held until after their initial *Pitchess* motion was denied, constitute new facts to support this renewed *Pitchess* motion.

A. Herrera’s Pre-Arrival Communications with PSPD

Plaintiffs contend that dispatch recordings and Officer Arden’s testimony now establish that Officer Arden was informed that Herrera was a “fugitive recovery agent” before Decedent called PSPD for help during the encounter, but that Officer Arden “apparently fell victim to Herrera attire” and may contend that he “believed Herrera was law enforcement or part of a lawful police operation.” (Reply, pp. 2-4.) However, the